

Calendar Line 5

Case Name: *Main Street Enterprise, Inc. v. FCA US LLC*

Case No.: 24CV439815

I. PROCEDURAL BACKGROUND

On May 24, 2024, Plaintiff Main Street Enterprise, Inc. filed a Complaint against Defendant FCA US LLC alleging violations of the Song-Beverly Consumer Warranty Act (the “Act”). Defendant filed its Answer on July 4, 2024.

The parties engaged in written discovery. On February 25, 2025, Plaintiff filed a Motion to Compel Further Responses and Documents to Requests for Production, Set One. On July 16, 2025, the Court granted Plaintiff’s motion in pertinent part.

On August 1, 2025, the parties attended mediation. On August 5, 2025, Defendant served a Code of Civil Procedure section 998 offer, which Plaintiff accepted. The settlement provided for payment of \$99,000, with attorney’s fees, costs, and expenses to be determined by motion. The settlement agreement also designated Plaintiff as the prevailing party for purposes of a fee motion.

On December 12, 2025, Plaintiff filed a Memorandum of Costs seeking \$1,186.53 in costs. Defendant did not timely move to strike or tax the claimed costs.

On December 31, 2025, Plaintiff filed the instant Motion for Attorney’s Fees, Costs, and Expenses, seeking \$21,828.95 in incurred attorney’s fees, plus \$3,375.00 in anticipated fees for reviewing the opposition, preparing a reply, and attending the hearing, for a total fee request of \$25,203.95, plus \$1,186.53 in costs.

Defendant filed its Opposition on August 3, 2026, challenging Plaintiff’s hourly rates and numerous billing entries and requesting an award of no more than \$6,421.85.

Plaintiff filed a Reply on August 7, 2026, together with a Supplemental Declaration of Carey B. Wood and Evidentiary Objections to the Declaration of Hector E. Zurita-Cruz.

The matter came on for hearing on August 14, 2026.

II. EVIDENTIARY OBJECTIONS

Plaintiff raises two objections to the Declaration of Hector E. Zurita-Cruz.

Objection No. 1: Plaintiff objects to Exhibit A, consisting of highlighted billing records, as improper expert testimony lacking foundation under Evidence Code sections 720 and 800–803.

Ruling: OVERRULED. Exhibit A does not purport to offer specialized expert testimony. Defendant’s counsel may identify and argue that particular billing entries are excessive,

duplicative, clerical, or otherwise unreasonable without qualifying as an expert witness. The Court considers the exhibit for that limited purpose.

Objection No. 2: Plaintiff objects to Exhibit B, an excerpt from the 2023 Real Rate Report, on foundational and authentication grounds.

Ruling: OVERRULED IN PART and SUSTAINED IN PART. The Court may consider evidence concerning prevailing market rates in determining reasonable hourly rates. However, the excerpt submitted does not establish sufficient information concerning its methodology, geographic scope, or comparability of the reported rates to the attorneys and work at issue here. The Court therefore gives the exhibit limited weight in determining reasonable hourly rates.

III. LEGAL STANDARD

Civil Code section 1794, subdivision (d), provides that a prevailing buyer in a Song-Beverly action is entitled to recover costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred in connection with the commencement and prosecution of the action.

The lodestar method generally applies. The Court first determines the number of hours reasonably expended and multiplies that figure by a reasonable hourly rate. The resulting lodestar may be adjusted based on circumstances specific to the case. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–1132; *Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 506–510.)

The prevailing buyer bears the burden of establishing the hours reasonably expended and the reasonableness of the requested rates. The Court has broad discretion to determine whether the claimed fees were reasonably incurred. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470; *Etcheson v. FCA US LLC* (2018) 30 Cal.App.5th 831, 840.)

IV. DISCUSSION

A. Prevailing Party Status

The parties do not dispute that Plaintiff is the prevailing party. The accepted section 998 offer and settlement agreement expressly provide that Plaintiff is the prevailing party for purposes of the attorney-fee motion.

Plaintiff therefore is entitled to recover attorney's fees and costs reasonably incurred in the commencement and prosecution of this action under Civil Code section 1794, subdivision (d).

B. Reasonable Hourly Rates

Plaintiff seeks the following hourly rates:

- Nancy Zhang: \$515–\$540 per hour;
- Corinna Jiang: \$430–\$450 per hour;
- Diana Rivero: \$510 per hour; and

- David Gomez, paralegal: \$210–\$215 per hour.

Defendant contends that the rates should be reduced to \$495 per hour for partners, \$295 per hour for associates, and \$100 per hour for paralegals.

The reasonable hourly rate is the prevailing market rate in the relevant community for attorneys and other professionals performing comparable work. The Court has considered the evidence submitted by both parties, including Defendant's Real Rate Report and Plaintiff's evidence concerning rates awarded in other cases.

The Court declines to adopt Defendant's proposed categorical rate caps. Defendant's rate evidence does not establish that the proposed rates are the appropriate rates for comparable Song-Beverly consumer-protection litigation in Santa Clara County.

The Court finds the following hourly rates reasonable for purposes of the lodestar on Song Beverly cases:

- Partner-level work: \$500-550 per hour;
- Associate-level work: \$300 - 400 per hour
- Paralegal work: \$200 per hour.

These rates Plaintiff is requesting is reasonable in light of the nature of the litigation, the work performed, the level of experience, and the relevant market.

C. Reasonable Hours Expended

Plaintiff's billing records reflect 54.13 hours of attorney and paralegal time. The Court has reviewed the challenged billing entries and addresses Defendant's principal objections below.

1. Motion to Compel

Defendant contends that Plaintiff waived any entitlement to fees incurred in connection with the motion to compel because Plaintiff did not request monetary discovery sanctions in the notice of motion as contemplated by Code of Civil Procedure section 2023.040.

The argument is unpersuasive. Plaintiff is not seeking discovery sanctions under section 2023.040. Plaintiff seeks attorney's fees under Civil Code section 1794, subdivision (d), for fees reasonably incurred in prosecuting the Song-Beverly action. The absence of a request for discovery sanctions does not preclude recovery of reasonable fees incurred in prosecuting a successful discovery motion.

The motion to compel was granted in pertinent part. The Court finds that the time spent on the motion, including meet-and-confer efforts, briefing, and the hearing, was reasonably incurred. No reduction is warranted.

2. Clerical and Administrative Tasks

Defendant challenges entries involving calendaring, receipt and review of documents, and preparation of proofs of service.

Reviewing pleadings, discovery, correspondence, court orders, and other litigation materials may constitute substantive legal work when it requires professional judgment. Purely ministerial tasks, however, are not reasonably compensable at attorney billing rates.

The Court has reviewed the challenged entries and finds that a modest reduction of \$300 adequately accounts for time that appears to have been administrative or ministerial in nature.

3. Allegedly Unintelligible Entries

Defendant challenges entries concerning review of technical service bulletins, recalls, campaigns, and repair history.

The Court finds these entries sufficiently described and reasonably related to the prosecution of the Song-Beverly claims. Review of the vehicle's repair history and technical information is substantive work relevant to the alleged defects, repair attempts, and Defendant's obligations under the Act. No additional reduction is warranted.

4. Billing Review and Redaction

Defendant challenges time spent reviewing billing records and redacting privileged or confidential information.

Reasonable time spent establishing and defending a statutory fee claim is compensable. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133–1134.) The Court finds the time claimed for billing review and redaction reasonable under the circumstances. No additional reduction is warranted.

5. Preparation of Fee Motion and Reply

Plaintiff may recover reasonable fees incurred in establishing its entitlement to attorney's fees. (*Ketchum v. Moses*, supra, 24 Cal.4th at pp. 1133–1134.)

The Court has reviewed the time incurred in preparing the fee motion and reply. The Court finds the additional time identified in the Supplemental Declaration of Carey B. Wood to be reasonable. The Court also finds reasonable additional time for preparation and attendance at the hearing.

The fee award shall therefore include the reasonable time incurred in connection with the fee motion, reply, and hearing (if applicable)

D. Lodestar Calculation

The Court finds that the hours reasonably expended should be calculated using the hourly rates set forth above. The Court further finds that a \$300 reduction is appropriate to account for ministerial or administrative tasks.

Plaintiff does not request a positive multiplier. Defendant requests a negative adjustment.

The Court declines to apply a negative multiplier. The Court has already accounted for the specific billing entries it finds unreasonable by reducing the lodestar by \$300. The remaining hours were reasonably related to the prosecution of the action.

This was not a case involving substantial overstaffing or unnecessary duplication. The bulk of the work was performed by a single associate, with limited involvement by other attorneys. The litigation also included a contested discovery motion that was granted in pertinent part. Under the circumstances, the Court finds no case-specific basis for applying a further negative adjustment to the lodestar.

F. Costs

Plaintiff filed a Memorandum of Costs seeking \$1,186.53. Defendant did not timely move to strike or tax the claimed costs as provided by California Rules of Court, rule 3.1700(b)(1).

Accordingly, Defendant has forfeited its opportunity to challenge the claimed costs through a motion to tax. The Court will award reasonable and properly supported costs.

Plaintiff shall provide supporting documentation for the claimed costs with its proposed order.

V. DISPOSITION

Good cause appearing, IT IS HEREBY ORDERED:

5. Plaintiff's Motion for Attorney's Fees, Costs, and Expenses is GRANTED IN PART.
6. In calculating the attorney-fee award, Plaintiff shall apply the rates set forth above to the hours found reasonable by the Court and
7. deduct \$300 for ministerial or administrative tasks.
8. No lodestar multiplier or negative multiplier shall be applied.
9. Plaintiff shall prepare, serve, and submit a proposed order consistent with this ruling, including the recalculated attorney-fee award, accompanied by the necessary Forms EFS-020, within seven (7) days of the hearing.

IT IS SO ORDERED.

Calendar Line 6

Case Name: *RS Lending, Inc. et al. v. Lamb Partners LLC et al.*

Case No.: 24CV441663

I. BACKGROUND

On June 21, 2024, Plaintiffs RS Lending, Inc. (“RSL”) and IIRR Management Services, LLC (“IMS”) (collectively, “Plaintiffs”) initiated this action against Defendants Lamb Partners LLC (“LP”), LPG 405 Alberto Way Residential LLC (“AWR”), Randolph F. Lamb (“Randolph”), and Lisa Carey-Lamb (“Lisa”) (collectively, “Defendants”).

On July 16, 2024, Plaintiffs filed the operative First Amended Complaint (“FAC”). According to the FAC, RealtyShares, Inc. was an investment platform for real estate crowdfunding services that created subsidiary entities, including RSL, to participate in real estate transactions. RealtyShares, Inc. was liquidated following a final bankruptcy order in July 2023, but its subsidiary entities remained active in ongoing real estate projects.

In the subject transaction, AWR was the operating LLC, RSL was the Preferred Member, and LP was the Managing Member. Randolph and Lisa were guarantors of LP’s performance of its obligations under the Operating Agreement (“OA”).

In March 2023, RSL and LP entered into a First Amended and Restated Operating Agreement (“AOA”), under which AWR was to develop and maintain real property in Los Gatos, California. RSL contributed \$2,350,824 in capital. The AOA provided for a Preferred Return of 18 percent per annum, subject to specified deadlines and a one-time 90-day extension upon payment of a \$10,000 extension fee. RSL was also entitled to return of its initial capital contribution. RSL alleges it received no payments.

In September 2023, the parties executed an Agreement for Extension of Time to Pay Preferred Return (“Extension”), pursuant to which LP received an additional 90 days to make payment. LP paid part of the extension fee but otherwise failed to make the required payments.

Plaintiffs thereafter filed an earlier action. Following a demand for mediation, Plaintiffs dismissed that action and the parties entered into a Settlement Agreement. Under the Settlement Agreement, LP and/or AWR agreed to make four specified payments to RSL. LP made the first payment but no further payments.

Plaintiffs subsequently filed this action, asserting two causes of action: (1) breach of the Settlement Agreement against LP and AWR; and (2) breach of the AOA and Extension against Randolph and Lisa.

On June 3, 2026, Plaintiffs moved for summary judgment, or in the alternative, summary adjudication. LP, Randolph, and Lisa oppose the motion. Plaintiffs filed a reply.